



SAFETY PLAN DETERMINATION REPORT

Case: 1412121 - MCCAFFERTY, MEGAN, D.

Reports / Investigations:

Report Number	Report Disposition	Response Time Assigned	Investigative Worker Assigned	Original Investigation
2065241	INVESTIGATION	PRI 2 W/IN 24HR	01-16-2024	Y

Nevada Initial Assessment

Case Worker: MIERAS, NATASHA

Date: 02-06-2024

Supervisor: WILLIAMSON, RYAN

Date: 02-06-2024

Household Assessed: NIA Household

Unsafe Children from NIA

Child	DOB	AGE
2141695 - BALDES, EVAKAY, M.	10-19-2009	14
2141698 - CLARK, ALEXIS, M.	02-24-2014	9

Safety Plan Determination

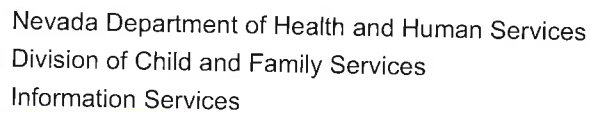
Created: 02-08-2024

Last Modified: 02-12-2024

Impending Danger Threats:

5. A parent or caregiver is violent and no adult in the home is protective of the child(ren).
6. One or both parents/caregivers emotional stability, developmental status or cognitive deficiency seriously impairs their ability to care for the child(ren).
7. One or both parents/caregivers cannot control their behavior.
13. One or both parents/caregivers lack parenting knowledge, skills, and motivation which affect child safety.

Evaluate and describe in detail how each Impending Danger Threat is occurring within the family including when (time of day), how often, under what circumstances, other influences involved and caregivers access to the child(ren).



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SAFETY PLAN DETERMINATION REPORT

There is limited information known around Mr. Clark's drug use aside from the fact that it is occurring, and the children are not only exposed to it, but are actively finding drugs and drug paraphernalia in the home. Mr. Clark reports being put on various medications when he was 12 for being "unruly." He said it progressed into street drugs with his drug of choice being methamphetamines. On January 18, 2024, Mr. Clark admitted that he has been "actively using." He described it as a way to keep him going, because he struggles with mental health, bipolar and depression, and he won't sleep for several days at a time. He works really hard, so when he is so exhausted that he can hardly function anymore, he will use to keep himself going. He said his only drug of choice is methamphetamines. He describes it being every few days via smoking. He does not use needles. He admits that Alexis did find meth one time when it fell out of a hole in his pocket in the bathroom but denies that she ever would have found it any other time. Collaterals report it is evident when Mr. Clark is using due to his erratic and manic behaviors. He becomes irate for no reason, is unable to hold a conversation or sit still.



SAFETY PLAN DETERMINATION REPORT

Mr. Clark described his relationship with Ms. McCafferty as being unhealthy as they argue a lot, and she uses the children as pawns, constantly threatening to take them away. She does things like tell the kids that he didn't help her buy any Christmas gifts and they're all from her, even though his money paid all the bills so that she could buy the Christmas gifts. He explained how he has been trying to get away from her for 10 years, but is constantly being drug back in. She threatens to leave with the kids. Mr. Clark admits to ongoing verbal arguing between him and Ms. McCafferty and has acknowledged that it is in the presence of the children. He denies any physical violence in the relationship.

Analysis A:

To Rule In or Rule Out an In-Home Safety Plan to be implemented in the child's own home.

2141695 - BALDES, EVAKAY, M.

☒	Y	Does the child's primary caregiver(s) have a suitable place to reside where an in-home safety plan can be considered?
☒	Y	Is there confidence in the sustainability of the safety plan in the current location of the caregivers?
☐	N	Is the home environment consistent enough to allow safety services in accordance with the safety plan, and for people participating in the safety plan to be in the home safely without disruption (e.g. reasonable schedules, routine, structure, general predictability of family functioning)?
☐	N	Are the primary caregivers cooperative with CPS; and willing to participate in the development of the in-home safety plan?
☐	N	Are the primary caregivers willing to allow safety services and actions to be provided in accordance with the safety plan?
☒	Y	Do the primary caregivers possess the necessary ability/capacity to participate in an in-home safety plan and do what they must do as identified in an in-home safety plan?
☐	N	Are there sufficient resources within the family or community to perform the safety services necessary to manage the identified impending danger threats?

2141698 - CLARK, ALEXIS, M.

☒	Y	Does the child's primary caregiver(s) have a suitable place to reside where an in-home safety plan can be considered?
☒	Y	Is there confidence in the sustainability of the safety plan in the current location of the caregivers?
☐	N	Is the home environment consistent enough to allow safety services in accordance with the safety plan, and for people participating in the safety plan to be in the home safely without disruption (e.g. reasonable schedules, routine, structure, general predictability of family functioning)?
☐	N	Are the primary caregivers cooperative with CPS; and willing to participate in the development of the in-home safety plan?
☐	N	Are the primary caregivers willing to allow safety services and actions to be provided in accordance with the safety plan?
☒	Y	Do the primary caregivers possess the necessary ability/capacity to participate in an in-home safety plan and do what they must do as identified in an in-home safety plan?
☐	N	Are there sufficient resources within the family or community to perform the safety services necessary to



SAFETY PLAN DETERMINATION REPORT

manage the identified impending danger threats?

If the answer to all of the Analysis A questions are "Yes", STOP the Safety Plan Determination and proceed with the development of an In-Home Safety Plan.

Analysis A No Justification:

Is the home environment consistent enough to allow safety services in accordance with the safety plan, and for people participating in the safety plan to be in the home safely without disruption (e.g. reasonable schedules, routine, structure, general predictability of family functioning)?

At this time, the agency does not have a solid understanding of the family's routine, schedule, or family functioning. The home environment is often chaotic due to the drug use and verbal disputes between Mr. Clark and Ms. McCafferty. The children describe ongoing violence in the home and Ms. McCafferty has reported conflicting information regarding her relationship with Mr. Clark. Mr. Clark admits to verbal violence between him and Ms. McCafferty and admits the relationship is unhealthy and toxic. There is no consistency in the home which would allow for the development of an in-home safety plan.

Are the primary caregivers cooperative with CPS; and willing to participate in the development of the in-home safety plan?

[REDACTED]

Mr. Clark has also waived on his recognition around the reasons for removal and cooperation with the agency. He continues to minimize his drug use and the effects it has on the household. He is known to coach his children, telling them to lie to CPS or they will be removed. As of this writing, Mr. Clark has not permitted HSA access to the home since the initial PDP was implemented, one week prior to the warrant being granted.

Are the primary caregivers willing to allow safety services and actions to be provided in accordance with the safety plan?

[REDACTED]

Mr. Clark waives on his understanding of the safety threats in the home and has been reported to coach his children against making disclosures to the agency. He has declined to participate in any drug testing and has provided minimal information around his drug use. As of this writing, Mr. Clark has not permitted HSA access to the home since the initial PDP was implemented, one week prior to the warrant being granted. There is not confidence that Mr. Clark would allow safety service actions to be provided in accordance with a safety plan.

Are there sufficient resources within the family or community to perform the safety services necessary to manage the identified impending danger threats?

There are not sufficient safety services available to control the drug use and domestic violence in the home. There are



SAFETY PLAN DETERMINATION REPORT

not known fictive kin or relatives who meet eligibility requirements and could be considered for participation in a safety plan. Further, there is still not enough of an understanding around the drug use, domestic violence, parenting and lack of structure in the home to completely understand when safety services would be necessary to mitigate identified threats.

Analysis B:

To Rule In or Rule Out an Out-of-Home Safety Plan to be implemented outside the child's own home.

2141695 - BALDES, EVAKAY, M.

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| N | Are there Relatives/Kin available that reside in a resource home and the environment is safe and stable to sustain placement (this includes a judgment about the community)? |
| N | The Relatives/Kin possess adequate Caregiver Protective Capacity (Behavioral, Cognitive, and Emotional Characteristics) to meet or accommodate all the needs of the children? (Child needs may include provocative, medical or special needs, behaviors, emotions, temperament, particularly vulnerable, child is a perpetrator or victim, fearful of the home, etc.) |
| N | The Safety Plan Provider is cleared of criminal activity and CPS history after completing all necessary background checks including state and local police records, central registry, and agency records? |
| N | Is Safety Plan with Relatives/Kin sufficient to manage Impending Dangers? Sufficiency requires a judgment that the Bio-Parents will cooperate with the Safety Plan, and the Relatives/Kin are trustworthy, reliable, committed, have available resources (including time), properly aligned with CPS and agree with the needs for placement. |

2141698 - CLARK, ALEXIS, M.

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| N | Are there Relatives/Kin available that reside in a resource home and the environment is safe and stable to sustain placement (this includes a judgment about the community)? |
| N | The Relatives/Kin possess adequate Caregiver Protective Capacity (Behavioral, Cognitive, and Emotional Characteristics) to meet or accommodate all the needs of the children? (Child needs may include provocative, medical or special needs, behaviors, emotions, temperament, particularly vulnerable, child is a perpetrator or victim, fearful of the home, etc.) |
| N | The Safety Plan Provider is cleared of criminal activity and CPS history after completing all necessary background checks including state and local police records, central registry, and agency records? |
| N | Is Safety Plan with Relatives/Kin sufficient to manage Impending Dangers? Sufficiency requires a judgment that the Bio-Parents will cooperate with the Safety Plan, and the Relatives/Kin are trustworthy, reliable, committed, have available resources (including time), properly aligned with CPS and agree with the needs for placement. |

Analysis B Summary:

If the answer to all of the Analysis B questions are "Yes", STOP the Safety Plan Determination and proceed with the development of an Out-of-Home Safety Plan with a Relative(s)/Kin.

If the answer to ANY of the Analysis Questions is "No", Safety Management must involve Foster Care Placement. Thoroughly justify any case specific information for any/all "No" determinations below. This



SAFETY PLAN DETERMINATION REPORT

establishes reasonable efforts, diligence, and CPS level of effort to pursue the least intrusive, most appropriate intervention. Proceed to Analysis C.

The only identified local relative is Alexis' paternal grandmother, Della Baker. She participated in an out of home PDP for one week and then declined to participate any further, for various reasons. She is not ruled out; however, not being considered for placement at this time therefore placement must include a resource home.

Analysis C:

To Rule In or Rule Out an Out-of-Home Foster Safety Plan to be implemented outside the child's own home.

2141695 - BALDES, EVAKAY, M.

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| Y | The Foster Home environment is safe and stable to sustain placement. |
| Y | The Foster Parents possess sufficient Caregiver Protective Capacity (Behavioral, Cognitive, and Emotional Characteristics) to meet and accommodate all the children's needs in the home? (Including provocative, medical or special needs, behaviors, emotions, temperament, particularly vulnerable, child is a perpetrator, fearful of the home, etc.) |

2141698 - CLARK, ALEXIS, M.

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|---|--|
| Y | The Foster Home environment is safe and stable to sustain placement. |
| Y | The Foster Parents possess sufficient Caregiver Protective Capacity (Behavioral, Cognitive, and Emotional Characteristics) to meet and accommodate all the children's needs in the home? (Including provocative, medical or special needs, behaviors, emotions, temperament, particularly vulnerable, child is a perpetrator, fearful of the home, etc.) |

If all the Analysis questions are "Yes", proceed with the development of an Out-of-Home Foster Safety Plan with a suitable Foster Care Provider.

Status	Effective	Created	Created By	Explanation
SUPRVSRAPPROVAL	02-09-2024	02-12-2024	WILLIAMSON, RYAN	
PENDINGAPPROVAL	02-08-2024	02-08-2024	MIERAS, NATASHA	
DRAFT	02-08-2024	02-08-2024	MIERAS, NATASHA	



Conditions for Return Report

Case: 1412121 - MCCAFFERTY, MEGAN, D.

Reports / Investigations:

Report Number	Report Disposition	Response Time Assigned	Investigative Worker Assigned	Original Investigation
2065241	INVESTIGATION	PRI 2 W/IN 24HR	01-16-2024	Y

CFR Detail:

[Redacted Content]

Question: Is the home environment consistent enough to allow safety services in accordance with the safety plan, and for people participating in the safety plan to be in the home safely without disruption (e.g. reasonable schedules, routine, structure, general predictability of family functioning)?

Caregiver: CLARK, DONOVAN, D. - 2141693



Conditions for Return Report

CFR Detail:

CFR Statement: There is not violence occurring in the home. The home environment is calm and predictable. There is no drug use occurring in the home. Mr. Clark understands how his drug use impacts his children and their health, safety and well-being is his top priority. Mr. Clark has a set routine and structure in the home that allows him to meet the needs of the children, and allows the agency to have a solid understanding of their day to day functioning.

Question: Are the primary caregivers cooperative with CPS; and willing to participate in the development of the in-home safety plan?

Caregiver: CLARK, DONOVAN, D. - 2141693

CFR Statement: Mr. Clark is open, honest and transparent with the agency about every thing that is occurring in the home. Ms. McCafferty is honest about his relationship with Ms. McCafferty. He does not coach the children. Mr. Clark will permit HSA access to the home anytime it is reasonably requested and/or needed to ensure the safety of the children. The agency has complete confidence that Mr. Clark will cooperate on a long-term basis such that an in-home safety plan can be implemented.

Question: Are the primary caregivers willing to allow safety services and actions to be provided in accordance with the safety plan?

Caregiver: CLARK, DONOVAN, D. - 2141693

CFR Statement: Mr. Clark demonstrates engagement with the agency and understands the safety threats in the home. The children are not coached or pressured against making statements or disclosures to the agency. Mr. Clark is willing to allow safety services and other actions to be provided in accordance with a safety plan.

Question: Are there sufficient resources within the family or community to perform the safety services necessary to manage the identified impending danger threats?

Caregiver: CLARK, DONOVAN, D. - 2141693

CFR Statement: There are sufficient and suitable safety services available daily to ensure the home is structured and not chaotic, that there is no domestic violence or drug use occurring. Mr. Clark will need to utilize WCHSA safety services to manage the identified impending danger threats.